

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 22, 2026
8:30 a.m.

3. MATTHEW MCGARRY V. ALLY HOFFMAN

25FL1256

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on June 10, 2026, to modify child support and order the Petitioner to pay one-half of the medical bills incurred by the parties' child, MH (age 10 months) (Respondent claims there is a total of \$504.00 in collections). Respondent concurrently filed a current Income and Expense Declaration (I&E). Proof of service filed June 16, 2026, shows the RFO and I&E were both personally served upon Petitioner that same day.

Respondent declares she has been unemployed since October 30, 2025, and receives monthly unemployment benefits in the amount of \$1,620. However, Respondent did not submit any supporting documentation from the Employment Development Department (EDD).

On July 07, 2026, Petitioner filed his current I&E, a copy of which was personally served upon Respondent on July 15, 2026, according to the proof of service filed that day. Petitioner filed no Responsive Declaration (Judicial Council form FL-310); however, there is a signed declaration attached to Petitioner's I&E. Petitioner declares he discontinued medical insurance for the parties' child effective May 01, 2026.

Petitioner's declaration also indicates that, although paternity has been established, he is still not listed on the child's birth certificate and the issue of her surname remains unresolved. The court notes that these issues are not presently before the court and will require Petitioner to file a separate RFO(s) seeking affirmative relief.

**TENTATIVE RULING #3: APPEARANCES ARE REQUIRED AT 8:30 A.M.,
WEDNESDAY, JULY 22, 2026, IN DEPARTMENT 12.**